

Swarnalata Routray @ vs Sasanka Sekhar Pradhan Opposite ... on 26 November, 2021

Author: B.R. Sarangi

Bench: B.R. Sarangi

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IN THE HIGH COURT OF ORISSA AT CUTTACK
TRP (C) No. 92 of 2018

Swarnalata Routray @ Pradhan		Petitioner
		Mr. R.K. Malik, Advocate
	Vs.	
Sasanka Sekhar Pradhan		Opposite party
		Mr. A.K. Sahoo, Advocate
CORAM:		
DR. JUSTICE B.R. SARANGI		

ORDER

26.11.2021 Order No. This matter is taken up through hybrid mode.

2. Heard Mr. R.K. Mallik, learned counsel for the petitioner and Mr. A.K.Sahoo, learned counsel for the respondent. 3 The petitioner-wife has filed this petition for transfer of C.P. No. 680 of 2014 from the file of Judge, Family Court Kendrapara to the file of Judge, Family Court Cuttack.

4. Mr. Malik, learned counsel for the petitioner contended that the petitioner-wife is residing at Balichandrapur, which is coming under the jurisdiction of Judge, Family Court, Cuttack and such it will be convenient on her part to participate the proceeding at Cuttack. But the opposite party-husband has filed the C.P. No. 860 of 2014 before the Judge, Family Court, Kendrapara under Section 10 of the Hindu Marriage Act and Section 7 of the Family Court Act for grant of decree of judicial separation between the parties. Since the petitioner has no other source of income and two children are depending on her and now they are prosecuting their studies at Cuttack, in the event the petitioner will appear at Kendrapara in connection with the said proceeding, it will cause prejudice to her as she has no other source of income or financial support to participate in the proceeding itself. Therefore, C.P. Case No. 860 of 2014 be transferred from the file of Judge, Family Court, Kendrapara to the file of Judge, Family Court, Cuttack. It is also further contended that the petitioner has filed an application for grant of maintenance under Section 125 Cr.P.C. before the Judge, Family Court, Cuttack, which was allowed exparte and because of non compliance of the same, Execution Case No. 34 of 2021 is pending. Deliberately and willfully the opposite party-husband is not participating in the said proceeding causing harassment to the petitioner. It is also contended that in the G.R. Case, which is pending before the SDJM, Kendrapara, though the

petitioner has engaged a counsel, but he returned the file on the threat given by the husband of the petitioner.

5. Mr. Sahoo, learned counsel for the opposite party- husband contended that the distance between the residence of the petitioner and the Family Court Kendrapara is only 30 km, whereas the Family Court, Cuttack is at a distance of 70 km. Therefore, it is convenient on the part of the petitioner to participate in the proceeding at Kendrapara, instead of Cuttack. He further contended that one G.R. Case is pending in the Court of SDJM, Kendrapara and in the event of appearance of the petitioner in the said case at Kendrapara, both CP case and GR case can be disposed of.

6. Having heard learned counsel for both the parties and after going through the records, it appears that the wife has filed this application for transfer of C.P. Case No. 860 of 2014 from Family Court Kendrapara to Family Court, Cuttack. The reason, which has been assigned, has also some bearing for transfer of the C.P. Case to Cuttack and more so, when the maintenance case is pending before the Family Court, Cuttack at the Execution Stage, it appears the opposite party to cause harassment to the petitioner is not appearing in the said proceeding itself.

7. In view of such position, the opposite party should participate in the proceeding at Cuttack, so that the matter can be resolved at the earliest. It is needless to say that if the opposite party appears in C.P. Case No. 860 of 2014 on being transferred to the Family Court, Cuttack, the same will not cause any hindrance and harassment to him. Since six years have already been passed, in the interest of equity, justice and fair play, it is directed that let the C.P. Case No. 860 of 2014 pending in the file of Judge, Family Court, Kendrapara, be transferred to the file of Judge, Family Court, Cuttack. This Court also directs both the parties to cooperate for early disposal of the matter, without asking for unnecessary adjudication. Both the parties are also directed to restrain themselves from causing any hindrance among themselves during adjudication of the proceeding. In the event any hindrance is caused by any side, the same will be brought to the notice of the Judge, Family Court, Cuttack. If any point of time, the opposite party will cause any untoward incident to the petitioner, she is also granted liberty to approach the appropriate forum in accordance with law.

8. With the above observation/direction, the TRP (C) stands disposed of.

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(DR. B.R. SARANGI)
JUDGE